



February 26th 2019 Delaware County Council Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=8mT2VEg57NM
Publication Date	2019-02-26T23:57:00Z
Target Category	delaware_county

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Municipal Meeting Report: Delaware County Council

Meeting Date: February 26, 2019

Body: Delaware County Council

Location: Muncie, Indiana

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The meeting was called to order at 9:00 a.m. on February 26, 2019, by the presiding officer.
- **Attendance:** Specific roll call counts for individual attendees are embedded via voice/roll votes throughout the transcript, capturing council members including Mr. Ballard, Ms. Chambers, Ms. Lassiter, Mr. Alexander, Mr. Bledsoe, and Mr. Piper, alongside Sheriff Tony Skinner and other local officials.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting proceeded directly to the agenda and procedural business following the call to order.

- **Approval of Minutes:** Motion to approve the minutes of the January 22nd meeting.
Approved by voice vote / roll call.
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4. Substantive Business & Board Action

Financial and Transfer Agenda

- **00:01:47 Circuit Court Transfer:**
 - *Sponsor / Presenter:* Ms. Patterson
 - *Deliberation Summary:* Transfer of funds for Fund 191 (Adult Probation Officer) totaling \$18,840 (plus corresponding line item adjustments), reviewed and recommended by the Finance Committee.
 - *Action & Vote Disposition:* Approved by roll call vote.
- **00:02:38 Emergency Medical Service (EMS) Transfer:**
 - *Sponsor / Presenter:* EMS Department
 - *Deliberation Summary:* Fund 109 adjustments totaling a net change of -\$34,624.41 to +\$34,624.41.
 - *Action & Vote Disposition:* Approved by roll call vote.
- **00:03:22 Sheriff Department Transfers:**
 - *Sponsor / Presenter:* Sheriff Department / Finance
 - *Deliberation Summary:* Multiple line-item adjustments (Funds 8135, 8136, 8110, 8114) accounting for personnel changes and separated longevity pay breakdowns.
 - *Action & Vote Disposition:* Approved by roll call vote.
- **00:05:10 User Fees & Community Corrections Transfers:**
 - *Sponsor / Presenter:* Courts / Community Corrections
 - *Deliberation Summary:* Adjustments for Fund 191 user fees and Fund 120 / 128 Community Corrections accounts due to staff turnover and replacement hires.
 - *Action & Vote Disposition:* Approved by roll call vote.
- **00:07:05 Clerk & Jail Transfers:**
 - *Sponsor / Presenter:* County Clerk and Jail Administration
 - *Deliberation Summary:* Adjustments reflecting staff departures and replacements, noting high turnover rates among correctional officers.
 - *Action & Vote Disposition:* Approved by roll call vote.
- **00:09:11 Auditor Postage Costs:**
 - *Sponsor / Presenter:* Auditor's Office
 - *Deliberation Summary:* Request for \$35,308.10 for tax sale postage costs, which are later reimbursed to the general fund through the redemption process.
 - *Action & Vote Disposition:* Approved by roll call vote.
- **00:10:07 Assessor Schools Conference:**
 - *Sponsor / Presenter:* Assessor's Office

- *Deliberation Summary:* Request for \$1,550 for schools/conferences.
 - *Action & Vote Disposition:* Approved by roll call vote.
- **00:10:37 EMS Capital Improvement & Equipment Purchases:**
 - *Sponsor / Presenter:* EMS / Finance Committee
 - *Deliberation Summary:* Request for \$89,041.59 for capital equipment, including power cots, a power load system, a 15-lead heart monitor, and Lucas 3 chest compression devices. Officials explained that the Lucas 3 devices provide 100% uninterrupted mechanical CPR, significantly improving cardiac arrest survival outcomes. The purchase aims to expand fleet outfitting eastward and westward across the county.
 - *Action & Vote Disposition:* Approved by roll call vote.
- **00:15:46 Ambulance Replacement / Remounting Program:**
 - *Sponsor / Presenter:* EMS / Council
 - *Deliberation Summary:* Discussion regarding remounting a Brawn ambulance acquired on trade. Remounting welded aluminum/steel boxes onto new chassis extends vehicle life and transitions the fleet to 100% Brawn units, avoiding inferior plywood-box models. Estimated cost around \$80,000 to \$160,000 based on production lead times.
 - *Action & Vote Disposition:* Approved by roll call vote.
- **00:19:15 User Fees - Drug Screen & Laptops:**
 - *Sponsor / Presenter:* Courts / Kim Mace (Chief Probation Officer)
 - *Deliberation Summary:* Request for \$13,000 total (including \$395 for drug screens and \$8,500 for laptops) to reimburse pretrial probation officer laptop purchases and equip all courtrooms with electronic filing/access tools.
 - *Action & Vote Disposition:* Approved by roll call vote.
- **00:21:15 Juvenile Family Recovery Court Coordinator:**
 - *Sponsor / Presenter:* Juvenile Court
 - *Deliberation Summary:* Creation of a half-time program coordinator / half-time court reporter position for the new Family Recovery Court (modeled after adult problem-solving/drug courts). Restructuring existing staff saves the county approximately \$14,000 this year, funded primarily via grant monies.
 - *Action & Vote Disposition:* Approved by roll call vote.
- **00:23:29 Operation Pullover DUI Grant:**
 - *Sponsor / Presenter:* Law Enforcement / Grant Administration
 - *Deliberation Summary:* Appropriation of \$40,000 for DUI grant salaries.
 - *Action & Vote Disposition:* Approved by roll call vote.
- **00:24:03 Ineligible Homestead Bookkeeper:**
 - *Sponsor / Presenter:* Auditor / Administration
 - *Deliberation Summary:* Request of \$2,974 for bookkeeper salary, FICA, and PERF.
 - *Action & Vote Disposition:* Approved by roll call vote.
- **00:24:42 Tax Administration Contractual Fees:**

- *Sponsor / Presenter:* Tax Administration
- *Deliberation Summary:* Request of \$120,645 for contractual tax administration fees funded entirely through special funds with no general fund appropriation.
- *Action & Vote Disposition:* Approved by roll call vote.

Board Appointments

- **00:26:31 Reappointment of Samantha Taylor to Yorktown Public Library Board:**
 - *Sponsor / Presenter:* Council / Samantha Taylor (Library Board President)
 - *Deliberation Summary:* Samantha Taylor presented an update on the library's \$1.4 million expansion project, noting high after-school youth program attendance (30<U+2013>40 kids daily) and separate adult spaces.
 - *Action & Vote Disposition:* Approved by roll call vote.

Jail Project Lease Agreement & Funding Ordinances

- **00:30:04 Ordinance 2019-006: Lease Agreement for Jail Project:**
 - *Sponsor / Presenter:* Council / Legal Counsel Mr. Hughes / Mr. Grove
 - *Deliberation Summary:* Consideration of the lease agreement approved by the Delaware County Commissioners to proceed with the new jail project. Extensive public comment was heard regarding alternatives, economic impacts, and overcrowding.
 - *Item-Specific Public Input:*
 - **Russ Burnham ([00:33:12]):** Highlighted low-level drug offender treatment alternatives and cooperation models with Madison County at lower costs.
 - **Linda Hanson ([00:36:14]):** Spoke for the League of Women Voters, urging a delay in action due to public concerns regarding downtown economic impact, decreasing inmate projections, and substance abuse treatment.
 - **Terry Hoskins ([00:37:44]):** Noted concerns over downtown economic vitality, accessibility for lower-income residents, and public opposition.
 - **Josh Halliwell ([00:39:39]):** Questioned transparency regarding EDIT (Economic Development Income Trust) fund usage and the long-term impact on infrastructure funding.
 - **Jason Donati ([00:42:26]):** Noted that the commissioners received only a single bid for the RFP, questioned the re-use plan for the 27-year-old current justice center, and cited state legislative trends (Criminal Rule 26, First Step Act).
 - **Tyler Berger ([00:47:03]):** Local public defender who discussed Criminal Rule 26 (taking effect Jan 2020), data showing over 90% of local filings are low-level felonies/misdemeanors, and the roots of incarceration in poverty, mental health, and addiction.

- **Nate Bros ([00:49:42]):** Clarified that the recent public forum on Saturday was not a protest, noting overwhelming public opposition to the current jail proposal.
 - **Leslie McCrory ([00:50:59]):** Urged the council to vote no, emphasizing extensive grassroots citizen research, public forums, and fiscal stewardship.
 - **Sheriff Tony Skinner ([00:53:59]):** Addressed overcrowding, stating the jail was operating at over 340 inmates (shipping inmates to other counties), holding zero low-level offenders unless bound by domestic violence/gun charges, and actively collaborating on Criminal Rule 26 screening.
 - **Giovanna Thompson ([00:57:16]):** Executive Director of the Muncie Human Rights Commission, asking for open hearts, community-faith collaboration, and panels to address root addiction issues.
 - *Action & Vote Disposition:* **Passed** (Roll call vote recorded with mixed ayes and nays; motion carried).
 - **00:44:42 Ordinance 2019-004: Funding Mechanism Without Property Tax Backup:**
 - *Sponsor / Presenter:* Council / Legal Counsel
 - *Deliberation Summary:* Second reading of the funding ordinance utilizing existing economic development revenues without adding a property tax backup, resulting in an 18-year payback term (saving approximately \$2 million in interest compared to a 20-year term with a property tax backup).
 - *Action & Vote Disposition:* **Approved** (Passed via roll call vote, maintaining consistency with the council's preference to avoid property tax backing).
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5. Open Public Comment / Citizen Forum

(Note: General citizen forum comments were integrated directly into the public hearing discussion for Ordinance 2019-006 above between timestamps 00:33:12 and 00:59:16.)

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** Council members and officials acknowledged the emotional and complex nature of financing long-term correctional infrastructure, referencing historical context from jail constructions in the 1980s and ongoing pretrial probation screening metrics (noting low qualification rates under strict statutory eligibility rules).
 - **Adjournment:** The meeting concluded following the completion of ordinance votes and final administrative remarks.
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